

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDICIION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 46013 of 2019

Mir Delowar Hossain

.... Accused-Petitioner

-Versus-

The State and another

.... Opposite Parties

Mr. Mohammad Abdullah, Advocate

.....For the petitioner

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. Md. Osman Chowdhury, Advocate

....For opposite party No. 2

Heard and Judgment on 17.01.2024

S M Kuddus Zaman, J:

This is an application under Section 561A of the Code of Criminal Procedure, at the instance of sole accused Mir Delowar Hossain for quashment of above proceedings, in Sessions Case No. 86 of 2018 arising out of C.R. Case No. 564 of 2017 under section 138 of the Negotiable Instrument Act, 1881, now pending in the Court of learned Sessions Judge, Sherpur.

Mr. Mohammad Abdullah, learned Advocate for the petitioner submits that the petitioner obtained loan from the complainant Padma Bank Ltd. and as a security he gave cheque. In the meantime above bank has filed Artha Rin Suit in the Artha Rin Adalat and pursuant to an order of that Court he has deposited Taka 1,00,00,000.00. As such this proceeding being a pre post status, false one is liable to be quashed.

We have heard the learned Advocate for the petitioner and perused the materials on record.

The Negotiable Instrument Act, 1881 is a special law. Undisputedly the accused petitioner signed and issued the impugned cheque to the complainant-opposite party which was dishonored for insufficient fund after presentation for encashment.

It transpires from the record that on compliance of all legal procedures the complainant has filed this case under Section 138 of the Negotiable Instruments Act.

It has been settled by the Appellate Division that a banking company can file a suit under section 138 of the Negotiable Instruments Act on the basis of a security cheque and a civil suit under the Artha Rin Adalat and a case under section 138 of the Negotiable Instrument Act for the selfsame loan are maintainable simultaneously.

In above view of the materials on record we are unable to find any substance in this petition under section 561A of the Code of Criminal Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

Naher, B.O.